

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 2, 2026
8:30 a.m./1:30 p.m.

6. ADAM KENT LEVERTON V. ERIKA NICOLE LEVERTON

25FL1094

On April 3, 2026, Respondent filed a Request for Order (RFO) seeking spousal support, child support, attorney's fees, and an order regarding the mortgage and utilities. She filed her Income and Expense Declaration and an attorney declaration concurrently therewith. All required documents were served on April 9th.

Petitioner filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on June 17, 2026.

The Supplemental Declaration of Erika Leverton, Respondent was filed and served on June 25th. The court deems this to be a reply declaration.

Respondent is requesting guideline child support and guideline spousal support. She further requests attorney's fees in the amount of \$8,500 payable by Petitioner to Respondent's counsel. Finally, she requests an order for Petitioner to pay all mortgage and utilities for the marital residence.

Petitioner opposes the support orders on the basis that the parties are currently residing in the same residence in a nesting arrangement. However, in the event the court is inclined to award support, he asks that Respondent be imputed with income. Also, if the court does award support, then Petitioner asks that both parties be equally responsible for community debts, including all of the associated housing costs (i.e. mortgage, insurance, property taxes, etc.). He further opposes the request for attorney fees as he does not have the ability to pay the fees of both parties.

The court has equitable power to deny or modify a support order when equity requires it. *Jackson v. Jackson*, 51 Cal. App. 3d 363 (1975). In keeping with California's equitable approach to support orders, courts have found that in home support during a period of living together can constitute support sufficient to act as a credit against the amount owed in monetary terms. *Helgestad v. Vargas*, 231 Cal. App. 4th 719, 735 (2014).

Here, the court finds the most equitable outcome is to set support orders that do not commence until the 1st of the month following Respondent's move from the marital residence. Given that an order of this nature is based on the premise that the supported spouse is receiving in-home support by way of the parties residing together, Petitioner is ordered to pay the entire cost of the mortgage, insurance, property taxes and utilities on the marital residence.

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Regarding the amount of support, an award of temporary spousal support lies solely within the trial court's discretion regarding each party's respective need and ability to pay. See *Marriage of Tong & Samson*, 197 Cal. App. 4th 23, 29 (2011). Support is appropriate where it is necessary to enable a spouse to advance their earning capacity and obtain marketable skills sufficient to become self-supporting. *Marriage of Watt*, 24 Cal. App. 3d 340, 347-348 (1989). However, it is not an abuse of discretion for the court to decrease an award for support, or deny it altogether, based on the requesting spouse's *unreasonable delay* or refusal to seek employment consistent with *existing* marketable skills and ability. In re *Marriage of Dennis*, 35 Cal. App. 3d 279, 283 (1973); See also *Marriage of Mason*, 93 Cal. App. 3d 215, 221 (1979).

Here, the Petition for Dissolution was filed on November 7, 2025. In the interim, Petitioner concedes that Respondent has had a mastectomy recently. Considering the foregoing, the court does not find that Respondent has acted *unreasonably* in failing to seek employment to date. Respondent is cautioned however, that the longer it takes for her to become self-supporting the more likely it is that the court will impute her with income in the future. For now however, the request to impute Respondent with income is denied without prejudice.

Utilizing the same figures as outlined in the attached Xspouse report, the court finds that child support is \$2,118 and spousal support per the Alameda formula is \$988 per month. The court adopts the attached Xspouse report and orders Petitioner to pay Respondent \$3,106 per month as and for child support and temporary spousal support, payable on the 1st of the month until further order of the court or legal termination. This order is effective as of the 1st of the month on the first full month that Respondent has moved out of the marital residence.

The court further finds Petitioner routinely earns overtime pay and therefore, an overtime table has been included with the Xspouse. Petitioner is to pay Respondent a quarterly true up of any overtime earned. Petitioner is to provide Respondent with copies of his pay statements each quarter.

Finally, turning to the issue of attorney fees. The public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." In Re *Marriage of Keech*, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. It "is not the redistribution of money from the greater income party to the lesser income party," but

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rather “parity.” Alan S. v Sup. Ct., 172 Cal. App. 4th 238,251(2009). In the face of a request for attorney’s fees and costs, the court is to make findings on “whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties.” Fam. Code § 2030(a)(2). Family Code section 2032 works in tandem with Section 2030 to ensure that any award of costs and fees is just and reasonable. Fam. Code § 2032.

Here, the court does find there to be a disparity in income however, given the large amount of debt that Petitioner seems to be paying the court does not find that he has the ability to pay for his attorney’s fees as well as those of Respondent. The request for attorney’s fees is therefore denied without prejudice.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: THE COURT IS SETTING SUPPORT ORDERS THAT DO NOT COMMENCE UNTIL THE 1ST OF THE MONTH FOLLOWING RESPONDENT’S MOVE FROM THE MARITAL RESIDENCE. PETITIONER IS ORDERED TO PAY THE ENTIRE COST OF THE MORTGAGE, INSURANCE, PROPERTY TAXES AND UTILITIES ON THE MARITAL RESIDENCE.

THE REQUEST TO IMPUTE RESPONDENT WITH INCOME IS DENIED WITHOUT PREJUDICE.

THE COURT FINDS THAT CHILD SUPPORT IS \$2,118 AND SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$988 PER MONTH. THE COURT ADOPTS THE ATTACHED XSPOUSE REPORT AND ORDERS PETITIONER TO PAY RESPONDENT \$3,106 PER MONTH AS AND FOR CHILD SUPPORT AND TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 1ST OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER IS EFFECTIVE AS OF THE 1ST OF THE MONTH ON THE FIRST FULL MONTH THAT RESPONDENT HAS MOVED OUT OF THE MARITAL RESIDENCE.

THE COURT FURTHER FINDS PETITIONER ROUTINELY EARNS OVERTIME PAY AND THEREFORE, AN OVERTIME TABLE HAS BEEN INCLUDED WITH THE XSPOUSE. PETITIONER IS TO PAY RESPONDENT A QUARTERLY TRUE UP OF ANY OVERTIME EARNED. PETITIONER IS TO PROVIDE RESPONDENT WITH COPIES OF HIS PAY STATEMENTS EACH QUARTER.

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THE REQUEST FOR ATTORNEY'S FEES IS DENIED WITHOUT PREJUDICE.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		Guideline	Proposed
#of children	0	2	2026					
% time with NCP	49.99 %	0.00 %	GUIDELINE		Comb. net spendable		7058	7488
Filing status	HH/MLA	HH/MLA	Nets(adjusted)		Percent change		0%	6%
# exemptions	2	3	Support		Father			
Wages+salary	13175	0	Father	7058	Payment cost/benefit		-3106	-2865
Self-employed income	0	0	Mother	0	Net spendable income		3952	4193
Other taxable income	0	0	Total	7058	Change from guideline		0	241
TANF+CS received	0	0	Support		% of combined spendable		56%	56%
Other nontaxable income	0	0	Addons	0	% of saving over guideline		0%	56%
New spouse income	0	0	Guideln CS	2118	Total taxes		2289	1859
401(k) employee contrib	0	0	Alameda SS	988	Dep. exemption value		0	0
Adjustments to income	0	0	Total	3106	# withholding allowances		0	0
SS paid prev marriage	0	0	-		Net wage paycheck		9174	9174
CS paid prev marriage	0	0			Mother			
Health insurance	856	0			Payment cost/benefit		3106	3295
Other medical expense	0	0			Net spendable income		3106	3295
Property tax expense	917	0			Change from guideline		0	189
Ded interest expense	1405	0	Proposed		% of combined spendable		44%	44%
Charitable contributions	0	0	Tactic 9		% of saving over guideline		0%	44%
Misc tax deductions	0	0	CS	2247	Total taxes		0	0
Qual bus income ded	0	0	SS	1048	Dep. exemption value		0	0
Required union dues	176	0	Total	3295	# withholding allowances		0	0
Mandatory retirement	2796	0	Saving	430	Net wage paycheck		0	0
Hardship deduction	0 *	0 *	Releases	2				
Other GDL deductions	0	0	Released to Father					
Child care expenses	0	0						

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	49 - 51	0	0	0	Father	2118	Father	2118	Father
	49 - 51	0	0	0	Father	794	Father	794	Father
	49 - 51	0	0	0	Father	1324	Father	1324	Father

Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father

Child Support			Spousal Support		Total CS	Total SS
Father's Bonus	% of bonus	\$	% of bonus	\$		(adjusted)
0	0.00	0	0.00	0	0	0
200	18.30	37	8.54	17	25,448	11,875
400	18.30	73	8.54	34	25,485	11,892
600	18.30	110	8.54	51	25,521	11,910
800	18.30	146	8.54	68	25,558	11,927
1,000	18.30	183	8.54	85	25,594	11,944
1,200	18.30	220	8.54	102	25,631	11,961
1,400	18.30	256	8.54	120	25,668	11,978
1,600	18.30	293	8.54	137	25,704	11,995
1,800	18.30	329	8.54	154	25,741	12,012
2,000	18.30	366	8.54	171	25,777	12,029
2,200	18.30	403	8.54	188	25,814	12,046
2,400	18.30	439	8.54	205	25,851	12,063
2,600	18.30	476	8.54	222	25,887	12,080
2,800	18.30	512	8.54	239	25,924	12,097
3,000	18.30	549	8.54	256	25,960	12,114
3,200	18.30	585	8.54	273	25,997	12,131
3,400	18.30	622	8.54	290	26,033	12,149
3,600	18.30	659	8.54	307	26,070	12,166
3,800	18.30	695	8.54	324	26,107	12,183
4,000	18.30	732	8.54	342	26,143	12,200
4,200	18.30	768	8.54	359	26,180	12,217
4,400	18.30	805	8.54	376	26,216	12,234
4,600	18.30	842	8.54	393	26,253	12,251
4,800	18.30	878	8.54	410	26,290	12,268
5,000	18.30	915	8.54	427	26,326	12,285
5,200	18.30	951	8.54	444	26,363	12,302
5,400	18.30	988	8.54	461	26,399	12,319
5,600	18.30	1,025	8.54	478	26,436	12,336
5,800	18.30	1,061	8.54	495	26,473	12,353
6,000	18.29	1,098	8.54	512	26,509	12,370
6,200	18.28	1,134	8.53	529	26,545	12,387
6,400	18.27	1,169	8.53	546	26,581	12,404
6,600	18.26	1,205	8.52	563	26,617	12,421
6,800	18.26	1,241	8.52	579	26,653	12,438
7,000	18.25	1,277	8.52	596	26,689	12,454
7,200	18.24	1,313	8.51	613	26,725	12,471
7,400	18.23	1,349	8.51	630	26,761	12,488
7,600	18.23	1,385	8.50	646	26,797	12,505
7,800	18.22	1,421	8.50	663	26,832	12,521
8,000	18.21	1,457	8.50	680	26,868	12,538
8,200	18.21	1,493	8.50	697	26,904	12,555
8,400	18.20	1,529	8.49	713	26,940	12,572
8,600	18.20	1,565	8.49	730	26,976	12,588
8,800	18.19	1,601	8.49	747	27,012	12,605

Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father

Father's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
9,000	18.19	1,637	8.49	764	27,048	12,622
9,200	18.18	1,673	8.48	781	27,084	12,639
9,400	18.18	1,709	8.48	797	27,120	12,656
9,600	18.17	1,745	8.48	814	27,156	12,672
9,800	18.17	1,780	8.48	831	27,192	12,689
10,000	18.16	1,816	8.48	848	27,228	12,706
10,200	18.16	1,852	8.47	864	27,264	12,723
10,400	18.16	1,888	8.47	881	27,300	12,739
10,600	18.15	1,924	8.47	898	27,336	12,756
10,800	18.15	1,960	8.47	915	27,372	12,773
11,000	18.15	1,996	8.47	931	27,407	12,790
11,200	18.14	2,032	8.47	948	27,443	12,807
11,400	18.14	2,068	8.46	965	27,479	12,823
11,600	18.14	2,104	8.46	982	27,515	12,840
11,800	18.13	2,140	8.46	999	27,551	12,857
12,000	18.13	2,176	8.46	1,015	27,587	12,874
12,200	18.13	2,212	8.46	1,032	27,623	12,890
12,400	18.13	2,248	8.46	1,049	27,659	12,907
12,600	18.13	2,285	8.46	1,066	27,696	12,924
12,800	18.14	2,322	8.47	1,084	27,733	12,942
13,000	18.15	2,359	8.47	1,101	27,771	12,959
13,200	18.16	2,397	8.47	1,118	27,808	12,977
13,400	18.16	2,434	8.48	1,136	27,845	12,994
13,600	18.17	2,471	8.48	1,153	27,882	13,011
13,800	18.18	2,508	8.48	1,171	27,920	13,029
14,000	18.18	2,546	8.49	1,188	27,957	13,046
14,200	18.19	2,583	8.49	1,205	27,994	13,064
14,400	18.20	2,620	8.49	1,223	28,032	13,081
14,600	18.20	2,657	8.49	1,240	28,069	13,098
14,800	18.21	2,695	8.50	1,257	28,106	13,116
15,000	18.21	2,732	8.50	1,275	28,143	13,133
15,200	18.22	2,769	8.50	1,292	28,181	13,150
15,400	18.22	2,806	8.50	1,309	28,217	13,168
15,600	18.22	2,842	8.50	1,326	28,253	13,184
15,800	18.22	2,878	8.50	1,343	28,289	13,201
16,000	18.21	2,914	8.50	1,360	28,326	13,218
16,200	18.21	2,950	8.50	1,377	28,362	13,235
16,400	18.21	2,987	8.50	1,394	28,398	13,252
16,600	18.21	3,023	8.50	1,411	28,434	13,269
16,800	18.21	3,059	8.50	1,427	28,470	13,286
17,000	18.21	3,095	8.50	1,444	28,506	13,303
17,200	18.21	3,131	8.50	1,461	28,543	13,319
17,400	18.20	3,167	8.49	1,478	28,579	13,336
17,600	18.20	3,204	8.49	1,495	28,615	13,353
17,800	18.20	3,240	8.49	1,512	28,651	13,370

Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father						Total CS	Total SS (adjusted)
Child Support			Spousal Support				
Father's Bonus	% of bonus	\$	% of bonus	\$			
18,000	18.20	3,276	8.49	1,529	28,687	13,387	
18,200	18.20	3,312	8.49	1,546	28,724	13,404	
18,400	18.20	3,348	8.49	1,563	28,760	13,421	
18,600	18.20	3,385	8.49	1,579	28,796	13,438	
18,800	18.20	3,421	8.49	1,596	28,832	13,455	
19,000	18.19	3,457	8.49	1,613	28,868	13,471	
19,200	18.19	3,493	8.49	1,630	28,904	13,488	
19,400	18.19	3,529	8.49	1,647	28,941	13,505	
19,600	18.19	3,565	8.49	1,664	28,977	13,522	
19,800	18.19	3,602	8.49	1,681	29,013	13,539	
20,000	18.19	3,638	8.49	1,698	29,049	13,556	
20,200	18.19	3,674	8.49	1,714	29,085	13,573	
20,400	18.19	3,710	8.49	1,731	29,122	13,590	
20,600	18.19	3,746	8.49	1,748	29,158	13,607	
20,800	18.19	3,783	8.49	1,765	29,194	13,623	
21,000	18.18	3,819	8.49	1,782	29,230	13,640	
21,200	18.18	3,855	8.49	1,799	29,266	13,657	
21,400	18.18	3,891	8.48	1,816	29,302	13,674	
21,600	18.18	3,927	8.48	1,833	29,339	13,691	
21,800	18.18	3,963	8.48	1,850	29,375	13,708	
22,000	18.18	4,000	8.48	1,866	29,411	13,725	
22,200	18.18	4,036	8.48	1,883	29,447	13,742	
22,400	18.18	4,072	8.48	1,900	29,483	13,758	
22,600	18.18	4,108	8.48	1,917	29,520	13,775	
22,800	18.18	4,144	8.48	1,934	29,556	13,792	
23,000	18.18	4,181	8.48	1,951	29,592	13,809	
23,200	18.18	4,217	8.48	1,968	29,628	13,826	
23,400	18.17	4,253	8.48	1,985	29,664	13,843	
23,600	18.17	4,289	8.48	2,001	29,700	13,860	
23,800	18.17	4,325	8.48	2,018	29,737	13,877	
24,000	18.17	4,361	8.48	2,035	29,773	13,894	
24,200	18.17	4,398	8.48	2,052	29,809	13,910	
24,400	18.17	4,434	8.48	2,069	29,845	13,927	
24,600	18.17	4,470	8.48	2,086	29,881	13,944	
24,800	18.17	4,506	8.48	2,103	29,918	13,961	
25,000	18.17	4,542	8.48	2,120	29,954	13,978	

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July 2, 2026
8:30 a.m./1:30 p.m.

7. JORDAN LYKINS V. SONJA GILSON

24FL0295

This matter is before the court for a Child Custody Recommending Counseling (CCRC) review hearing. The parties were referred to CCRC on January 20, 2026, during the hearing on Petitioner's request for a Domestic Violence Restraining Order (DVRO). In accordance with the court's order, the parties attended CCRC on February 4, 2026 and were able to reach agreements on all issues. A report containing those agreements was prepared and mailed to the parties on March 13, 2026.

The court has reviewed the filings as outlined above and, given that Petitioner has dropped the DVRO request, the court finds the agreements contained in the March 13, 2026 CCRC report to be in the best interests of the minors and they are hereby adopted as the orders of the court.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: THE COURT FINDS THE AGREEMENTS CONTAINED IN THE MARCH 13, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.